

		\$3,000 to cover additional anticipated time in connection with this motion. The billable rates requested vary from \$210 -\$215 for paralegals, \$425-\$440 for associates and \$525-\$540 for the partners who worked on this case. The Court has reviewed the declaration of Joshua D. Fennell in support of the motion and finds the rates associated with each billing attorney reasonable, given the experience of the attorneys. Similarly, the time expended is also reasonable. Because no opposition or reply was filed, the Court declines to award the requested \$3,000 in anticipated time for reviewing the opposition, preparing the reply and attending the hearing. Accordingly, the motion is GRANTED in the reduced amount of \$11,510.50. Plaintiff to give notice.
111	Sandoval vs. SPS North America, Inc. 26-01568222	Motion to Compel Arbitration x 2 Joinder Defendants SPS North America, Inc. (“SPS”) and Barbara Jean Dear (“Dear”) move to compel plaintiff Julian Sandoval (“Plaintiff”) to arbitrate the claims asserted in this action and to stay this action pending resolution of the arbitration. Defendant Amazon.com Services, LLC (“Amazon”) has filed a separate motion seeking the same relief, as well as a joinder to SPS and Dear’s motion. Amazon’s motion for joinder is GRANTED. A party to an arbitration agreement may seek a court order compelling the parties to arbitrate a dispute covered by the agreement. (Code Civ. Proc., § 1281.2.) “The trial court may resolve motions to

	compel arbitration in summary proceedings, in which ‘[t]he petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. [Citation.] In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court’s discretion, to reach a final determination.’” (Lane v. Francis Capital Management LLC (2014) 224 Cal.App.4th 676, 683.) SPS and Bear have met their initial burden by attaching a copy of the arbitration agreement bearing Plaintiff’s signature. Plaintiff does not dispute signing the agreement. However, Plaintiff argues the agreement is unenforceable under the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act (the “EFAA”) and under an unconscionability analysis. Plaintiff further argues Amazon has no standing to seek to enforce the agreement. The EFAA The EFAA added two sections to the Federal Arbitration Act, 9 U.S.C. §§ 401 and 402. “Section 402, subdivision (a), provides that at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute, ‘no pre-dispute arbitration agreement or pre-dispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute.’ ” (Kader v. Southern California Medical Center, Inc. (2024) 99 Cal.App.5th 214, 221.) “The EFAA defines a ‘ “sexual harassment dispute” ’ as ‘a dispute relating to conduct that is alleged to constitute sexual
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	harassment under applicable Federal, Tribal, or State law.’ [Citation.]” (Quilala v. Securitas Security Services USA, Inc. (2025) 117 Cal.App.5th 75, 83.) “The EFAA expressly provides that its applicability ‘shall be determined by a court, rather than an arbitrator.’” (Id. at p. 84.) Plaintiff alleges that on June 26, 2025, a security guard at Plaintiff’s worksite verbally assaulted Plaintiff with homophobic insults. Plaintiff reported the assault to Defendant Dear, his manager and supervisor, but Dear did not address his complaint. Plaintiff alleges that Defendants retaliated against him when he reported the conduct. Based on these allegations, Plaintiff contends the EFAA applies and no separately captioned sexual harassment cause of action is required. SPS and Dear argue the EFAA does not apply because, at best, Plaintiff has alleged gender or sexual orientation discrimination based on occasional homophobic slurs and differential treatment and this kind of alleged generalized discrimination does not constitute a sexual assault dispute or sexual harassment dispute. While it appears that no California court has addressed whether the EFAA applies to cases which involve allegations of sexual harassment but do not assert causes of action directly based on that sexual harassment. However, the Court finds the discussion in Doe v. Second Street Corp. (2024) 105 Cal.App.5th 552 instructive. There, the court considered whether the EFAA applied only to the plaintiff’s sexual harassment claims or to the entire action. (Id. at p. 573.) In holding that the EFAA applied to the entire action, the court cited Johnson v. Everyrealm, Inc. (S.D.N.Y. 2023) 657 F.Supp.3d 535. The Johnson court noted that the EFAA applies to make a pre-dispute arbitration agreement invalid and unenforceable “with respect to a case which . . . relates to the . . . sexual harassment dispute.” (657
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F.Supp.3d at p. 558.) Based on that statutory language, the Johnson court held: “This text is clear, unambiguous, and decisive as to the issue here. It keys the scope of the invalidation of the arbitration clause to the entire “case” relating to the sexual harassment dispute. It thus does not limit the invalidation to the claim or claims in which that dispute plays a part.” (Ibid.)

The Second Street court adopted Johnson’s analysis and held: “By its plain language, then, the statute applies to the entire case, not merely to the sexual assault or sexual harassment claims alleged as a part of the case. It is significant, moreover, that the statute does not require that the pendant claims arise out of the sexual assault or sexual harassment dispute; it is enough that the case relates to the sexual assault or sexual harassment claims.” (105 Cal.App.5th at p. 577, emphasis in original.) The Second Street court went on to say that “although not all of plaintiff’s causes of action arise out of her sexual harassment allegations, the ‘case’ unquestionably ‘relates to’ the sexual harassment dispute” (Ibid.)

As the Second Street court noted, the statute does not require that the claims asserted arise out of the alleged sexual assault or sexual harassment dispute. Rather, if the case itself relates to the sexual assault or sexual harassment dispute, the EFAA will apply to the entire case. Here, Plaintiff’s allegations that a security guard at his place of work verbally assaulted him with homophobic insults and slurs describe harassment because of sex under FEHA. (Decloedt v. Radnet Management, Inc. (2026) 121 Cal.App.5th 732, 742 [“we conclude sexual orientation harassment is a form of harassment because of sex under FEHA.”].) Plaintiff’s allegation that he suffered retaliation when he reported the harassment relates to that sexual harassment dispute. Because at least part of this

	action relates to a sexual harassment dispute, the Court finds the arbitration agreement is unenforceable as to the entire case under the EFAA. Notably, the Second Circuit rejected the argument that the EFAA does not apply to retaliation claims because such claims do not fall within the definition of a “sexual harassment dispute.” (Olivieri v. Stifel, Nicolaus & Company, Incorporated (2d Cir. 2024) 112 F.4th 74, 92.) The Olivieri court held the argument was “meritless” under the EFAA’s definition of a “sexual harassment dispute” as “a dispute relating to conduct that is alleged to constitute sexual harassment under applicable Federal, Tribal, or State law.” (Ibid.) As in Olivieri, Plaintiff’s claims of retaliation here relate to conduct that is alleged to constitute sexual harassment. While Olivieri is not binding upon this Court, the Court finds its reasoning to be persuasive. (See also Delo v. Paul Taylor Dance Foundation, Inc. (2023) 685 F.Supp.3d 173, 181 [“there is nothing in the text of the EFAA that suggests its applicability hinges on how a claim is labeled”].) Based on the above, the Court finds that the EFAA applies and renders the arbitration agreement unenforceable. As a result, the Court need not address Amazon’s arguments regarding equitable estoppel, third-party beneficiary standing, alter ego, and agency. The Court also need not address issues of unconscionability. The Court DENIES the Motions to Compel Arbitration. Moving party to give notice
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